

The Kusum Seed Grading and Marking Rules, 2018

Source: <https://indiankanoon.org/doc/142820116/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

Union of India - Act

The Kusum Seed Grading and Marking Rules, 2018

UNION OF INDIA

India

The Kusum Seed Grading and Marking Rules, 2018

Rule THE-KUSUM-SEED-GRADING-AND-MARKING-RULES-2018 of 2018

Published on 27 June 2018

Commenced on 27 June 2018

[This is the version of this document from 27 June 2018.]

[Note: The original publication document is not available and this content could not be verified.]

The Kusum Seed Grading and Marking Rules, 2018

Published vide Notification No. G.S.R. 600(E), dated 27.6.2018

G.S.R. 600(E). - Whereas, the Kusum Seed Grading and Marking Rules, 2018, in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937) was published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) vide notification number G.S.R.1153(E), dated the 19th December, 2016 inviting objections and suggestions from all persons likely to be affected thereby within thirty days from the date on which copies of the said notification published in the Gazette of India were made available to the public;

And, whereas, copies of the said notification were made available to the public on 19th December, 2016;

And, whereas, no objections or suggestions have been received from the public in respect of the said rules;

Now, therefore, in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937), the Central Government hereby makes the following rules, namely:-

1.

Short title, application and commencement.

(1)

These rules may be called the Kusum Seed Grading and Marking Rules, 2018.

(2)

They shall apply to Kusum Seed obtained from the plant *Schleichera oleosa* (Lour.) Merr. Syn. *S. trijuga* Willd. of the family Sapindaceae.

(3)

They shall come into force on the date of their final publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

(a)

"Agricultural Marketing Adviser" means the Agricultural Marketing Adviser to the Government of India;

(b)

"authorised packer" means a person or a body of persons who has been granted a certificate of authorisation to grade and mark Kusum Seed in accordance with the grade standards and procedure provided under these rules;

(c)

"certificate of authorisation" means a certificate issued under the provisions of the General Grading and Marking Rules, 1988 authorising a person or a body of persons to grade and mark Kusum Seed with the grade designation mark;

(d)

"General Grading and Marking Rules" means the General Grading and Marking Rules, 1988 made under section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937);

(e)

"grade designation mark" means the Agmark insignia referred to in rule 5;

(f)

"Schedule" means a Schedule appended to these rules.

(2)

Words and expression used in these rules and not defined but defined in the Agricultural Produce (Grading and Marking) Act, 1937(1 of 1937) and the General Grading and Marking Rules,1988 shall have the meanings respectively assigned to them in the said Act and the said rules.

3.

Grade designations.

- The grade designations to indicate the quality of Kusum Seed shall be as set out in column (1) of the Table in Schedule II.

4.

Quality.

- For the purposes of these rules, the quality of Kusum Seed shall be as specified in Schedule II.

5.

Grade designation mark.

- The grade designation mark shall be "AGMARK insignia" consisting of a design incorporating the certificate of authorisation number, the word "AGMARK", name of commodity and grade designation resembling the design as set out in Schedule I.

6.

Method of packing.

(1)

Kusum Seeds shall be packed in sound, clean and dry containers made of jute or cloth bags or polywoven bags with inner lining of food-grade material or pouches made of polypropylene or polyethylene or paper bags laminated with polypropylene or polyethylene or any food grade material as approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 11 of the General Grading and Marking Rules.

(2)

The packing material shall be free from insect and fungal infestation and should not impart any toxic substance or undesirable odour or flavour to the product.

(3)

Kusum seed shall be packed in pack sizes as per the provisions in the Legal Metrology (packaged commodities) Rules, 2011 made under sub-section (1) read with clauses (j) and (q) of sub-section (2) of section 52 of the Legal Metrology Act, 2009 (

1 of 2010

) or as per the instructions issued by the Agricultural Marketing Adviser from time to time.

(4)

Graded material of small pack sizes of the same lot or batch and grade may be packed in a master container with complete details thereon along with grade designation mark.

(5)

Each package shall contain Kusum Seed of the same type and of the same grade designation.

(6)

Each package shall be properly and securely closed and sealed so as to preclude any contamination.

7.

Method of Marking.

(1)

The grade designation mark shall be securely affixed to or printed on each package in a manner approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 11 of the General Grading and Marking Rules.

(2)

In addition to the grade designation mark, following particulars shall be clearly and indelibly marked on each package, namely :-

(a)

Name of the commodity;

(b)

Grade;

(c)

Variety or trade name (optional);

(d)

Lot number;

(e)

Date of packing;

(f)

Address of the place of packing;

(g)

Net weight;

(h)

Name and address of the packer;

(i)

Maximum retail price (inclusive of all taxes);

(j)

Best before month year;

(k)

Any other particulars as may be specified under the Legal Metrology (Packaged commodities) Rules, 2011, the Food Safety and Standards Act, 2006 (

34 of 2006

) or any other law being in force or instructions issued by the Agricultural Marketing Adviser or an officer authorized by him in this behalf.

(3)

The ink used for marking on packages shall not contaminate the Kusum Seed.

(4)

The authorised packer, may, after obtaining prior approval of the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 11 of the General Grading and Marking Rules, mark his private trade mark or trade brand on the graded packages which do not indicate quality other than that indicated by the grade designation mark affixed to the graded packages in accordance with these rules.

8.

Special conditions of certificate of authorisation.

(1)

In addition to the conditions specified in the subrule (8) of rule 3 of the General Grading and Marking Rules, every authorised packer shall follow all the instructions specified by the Agricultural Marketing Adviser from time to time.

(2)

The premises shall be maintained in hygienic and sanitary conditions with proper ventilations and well lighted arrangement and the personnel engaged in these operations should be in sound health and free from any infectious, contagious or communicable diseases.

(3)

The authorised packer shall have storage facilities with pucca floor and free from rodent and insect infestation.

(4)

The authorised packer shall comply with all instructions regarding grading, packing, marking, sealing and maintenance of records which may be issued by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with the General Grading and Marking Rules from time to time.

I

(See rule 5)

(Design of Agmark insignia)

Name of commodity

Grade

II

(See rules 3 and 4)

Grade designation and quality of Kusum Seed

1. Kusum Seed shall be obtained from the plant *Schleichera oleosa* (Lour.) Merr. Syn. *S. trijuga* Willd. of the family Sapindaceae for oil milling and not meant for human consumption.

2. Minimum requirements: (i) Kusum Seed shall be-

(a)

wholesome, mature, clean and dried ;

(b)

uniform in size, shape and colour,

(c)

free from living insects, dead insects and insect fragments;

(d)

free from fungus infestation, mould growth ;

(e)

free from added artificial colouring matter;

(f)

free from rodent hair and excreta;

(g)

free from other than Kusum seed;

(h)

free from rancidity and mustiness;

(ii)

the odour and flavour of the seeds when ground and moistened shall be fresh.

3. Criteria for grade designation and quality of Kusum Seed:

Grade designation

Moisture, per cent by weight (max.)

Organic extraneous matter, percent by weight
(max.)

Inorganic extraneous matter, percent by weight
(max.)

Damaged, shriveled and immature seed, percent
by weight (max.)

Oil content (on dry basis) percent by weight
(min.)

Acid value of the extracted oil (max.)

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Special

Standard

General

6

60

7

0.5

1

2

0.2

1

2

1

2

4

32

30

28

3

5

8

4. Other requirements:- (i) The condition of the Kusum Seed shall be such so as to enable it-

(a)

to withstand transport and handling; and

(b)

to arrive in satisfactory condition at the place of destination;

(ii)

Kusum Seed shall be stored in dry place, maintained in a clean and hygienic condition.

Explanations. - 1. "Organic matter" consisting of husk, straws, weeds, and other inedible grains.

2. Inorganic matter" consisting of metallic pieces, dust, sand, gravel, stones, dirt, pebbles, lumps of earth, clay & mud and animal filth.

3. Damaged seeds mean seeds that are internally damaged as a result of heat, micro and moisture which materially

affects the quality;

4. Immature and shriveled seeds mean seeds that are not properly developed.

Related AI tags, queries and research notes

Translation